

Building (Refuse Storage and Material Recovery Chambers and Refuse Chutes) Regulations

(Cap. 123 sub. leg. H)

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Building (Refuse Storage and Material Recovery Chambers and Refuse Chutes) Regulations

(39 of 2000 s. 7)

(Cap. 123, section 38)

[1 January 1985]

(Format changes—E.R. 1 of 2012)

Editorial Note:

The title of these Regulations was amended from “Building (Refuse Storage Chambers and Chutes) Regulations” to “Building (Refuse Storage and Material Recovery Chambers and Refuse Chutes) Regulations” — see 39 of 2000 s. 7.

1. *(Repealed 39 of 2000 s. 7)*

2. Interpretation

In these regulations, unless the context otherwise requires—

aggregate usable floor space (總實用樓面空間) in relation to a composite building means the aggregate of the usable floor space of the domestic building component of that composite building and one third of the usable floor space of the non-domestic building component of that composite building;

approved (批准) means approved by the Building Authority;

church (教堂) means a building constructed or intended to be used principally for the purpose of religious worship;

collection authority (收集當局) means the Director of Food and Environmental Hygiene; *(78 of 1999 s. 7)*

external wall (外牆) means the whole, or any part, of an outer wall of a building not being a party wall, even though adjoining a wall of another building; (*16 of 2011 s. 42*)

floor area (樓面面積) means—

- (a) in relation to a composite building, the aggregate usable floor space; or
- (b) in relation to any other building, the usable floor space;

foul water (穢水) has the meaning assigned to it by the Building (Standards of Sanitary Fitments, Plumbing, Drainage Works and Latrines) Regulations (Cap. 123 sub. leg. I);

hopper (漏斗) means the fitment on a refuse chute into which refuse is placed and from which it is projected into the chute;

industrial building (工業建築物) means—

- (a) a godown; or
- (b) a building in which articles are manufactured, altered, cleaned, repaired, ornamented, finished, adapted for sale, broken up or demolished, or in which materials are transformed;

material recovery chamber (物料回收房) means a chamber in which separating and sorting of reusable or recyclable materials are carried out and recovered materials are stored; (*39 of 2000 s. 7*)

material recovery chamber with vehicular access (設有車輛通道的物料回收房) means a material recovery chamber to which vehicular access is provided adequate for the ingress and egress of a material recovery collection vehicle of a type customarily used by the collection authority; (*39 of 2000 s. 7*)

open air (露天地方) has the meaning assigned to it by the Building (Planning) Regulations (Cap. 123 sub. leg. F);

plan (圖則) means a plan submitted to the Building Authority for approval under section 14 of the Ordinance;

recovered materials (回收物料) means any reusable or recyclable materials which are recovered from refuse; (39 of 2000 s. 7)

recyclable materials (可循環再造物料) means any materials which are capable of being regenerated into raw materials in the manufacture of new products; (39 of 2000 s. 7)

refuse container (垃圾桶) means a receptacle in which refuse is intended to be stored;

refuse storage and material recovery chamber (垃圾及物料回收房) means a single chamber in which refuse containers are stored and in which separating and sorting of reusable or recyclable materials are carried out and recovered materials are stored; (39 of 2000 s. 7)

refuse storage and material recovery chamber with vehicular access (設有車輛通道的垃圾及物料回收房) means a refuse storage and material recovery chamber to which vehicular access is provided adequate for the ingress and egress of a refuse and material recovery collection vehicle of a type customarily used by the collection authority; (39 of 2000 s. 7)

refuse storage and material recovery room (垃圾及物料回收室) means a single room in any building which is used for separation of refuse, sorting of reusable or recyclable materials and storage of refuse and recovered materials; (39 of 2000 s. 7; L.N. 125 of 2008)

reusable materials (可再使用物料) means any materials which are capable of being used again or repeatedly in its current form without breaking down into raw materials; (39 of 2000 s. 7)

reusable or recyclable materials (可再使用或可循環再造物料) means the composition of reusable materials and recyclable

materials, including paper, paperboard, plastic, glass, wood, metal and textile; (39 of 2000 s. 7; L.N. 125 of 2008)

school (學校) means a building constructed or intended to be used principally for the purpose of primary, secondary or tertiary education and includes a building used wholly for the provision of a day nursery, kindergarten, play group, play school or otherwise for the day-time care and education of children and a building used principally for other full-time education;

soil fitment (便溺污水設備) has the meaning assigned to it by the Building (Standards of Sanitary Fitments, Plumbing, Drainage Works and Latrines) Regulations (Cap. 123 sub. leg. I);

usable floor space (實用樓面空間) means any floor space other than staircases, staircase halls, lift landings, the space used in providing water closet fitments, urinals and lavatory basins and the space occupied by machinery for any lift, air-conditioning system or similar service.

(39 of 2000 s. 7)

3. Refuse storage and material recovery chambers or material recovery chambers to be provided for in plans relating to buildings specified in the Schedule

- (1) Every plan relating to a building of a description, or 2 or more buildings both or all of which are of the same description, specified in the first column of the Schedule with a total floor area specified opposite that description of building in the second column thereof shall show provision for a refuse storage and material recovery chamber or material recovery chamber of the description specified opposite that floor area in the third column and such refuse storage and material recovery chamber or material recovery chamber shall have a total floor space of not less than that specified opposite

that refuse storage and material recovery chamber or material recovery chamber in the fourth column thereof.

- (2) In the case of a plan relating to 2 or more buildings falling within 2 or more of the descriptions specified in the first column of the Schedule, paragraph (1) shall apply as if those buildings were comprised in a single composite building and the plan related to that composite building.
- (3) This regulation shall not apply to a building constructed or adapted for use principally as a church, a school or a car park.

(39 of 2000 s. 7)

3A. Refuse storage and material recovery rooms to be provided for in plans relating to domestic buildings or domestic part of composite buildings

- (1) Subject to the other provisions of this regulation, every plan relating to—
 - (a) a domestic building; or
 - (b) the domestic part of a composite building,shall show provision for a refuse storage and material recovery room on every floor of the domestic building, or of the domestic part.
- (2) Where any 2 or more consecutive floors of the domestic building, or of the domestic part, as shown on the plan, comprise only one or more multi-floor units, the plan, to the extent that it relates to those floors, shall comply with paragraph (3).
- (3) In relation to the multi-floor unit or any of the multi-floor units, the plan shall show provision for a refuse storage and material recovery room on at least one of those floors on which that unit is located, unless the plan shows provision for

- a refuse storage and material recovery chamber or material recovery chamber on any of those floors under regulation 3.
- (4) The plan is not required to show provision for a refuse storage and material recovery room on a floor of any of the following descriptions—
- (a) a floor which is not designed for habitation;
 - (b) a floor on which there is provision for a refuse storage and material recovery chamber or material recovery chamber shown on the plan under regulation 3.
- (5) Where a plan relates to any part of a domestic building, or the domestic part of a composite building, that is designed for use as a hotel, guest-house or boarding house, this regulation does not apply to the plan to the extent that it relates to that part. (*L.N. 206 of 2008*)
- (6) Where a plan relates to a building of any of the following descriptions, this regulation does not apply to the plan to the extent that it relates to that building—
- (a) a domestic building or composite building with one staircase only;
 - (b) a domestic building designed for occupation by one single family only and with not more than 3 floors designed for habitation;
 - (c) a composite building the domestic part of which comprises not more than 3 floors and is designed for habitation by one single family only;
 - (d) a domestic building or composite building on a site of an area of not more than 500 square metres.
- (7) In this regulation, ***multi-floor unit*** (多層單位), in relation to a domestic building or the domestic part of a composite building, means a domestic unit which occupies space on 2

or more consecutive floors of the domestic building or of the domestic part.

(L.N. 125 of 2008)

4. Refuse storage and material recovery chambers to comply with regulations 5 to 12A

Where a refuse storage and material recovery chamber is provided in any building it shall be so designed as to comply with the requirements of regulations 5 to 12A.

(39 of 2000 s. 7)

4A. Material recovery chambers to comply with regulations 5 to 12A

Where a material recovery chamber is provided in any building it shall be so designed as to comply with the requirements of refuse storage and material recovery chambers set out in regulations 5 to 12A.

(39 of 2000 s. 7)

4B. Refuse storage and material recovery rooms to comply with regulations 8(1), 12A, 12B and 12C

Where a refuse storage and material recovery room is provided on any floor in any building it shall be so designed as to comply with—

- (a) the requirements of refuse storage and material recovery chambers set out in regulations 8(1) and 12A; and
- (b) the requirements of regulations 12B and 12C.

(39 of 2000 s. 7)

5. Access to refuse storage and material recovery chambers for emptying refuse containers and recovered materials

- (1) Every refuse storage and material recovery chamber shall be of a design approved by the Building Authority and in such location approved by the Building Authority as to provide ready access thereto for the purpose of removing any refuse container and recovered materials stored in such refuse storage and material recovery chamber.
- (2) Where access to any refuse storage and material recovery chamber other than a refuse storage and material recovery chamber with vehicular access is obtained along a passage or alley or similar way, the passage, alley or other way shall be not less than 1.5 m in width, shall be without steps and paved and shall have a longitudinal gradient not greater than 1 in 20.

(39 of 2000 s. 7)

6. Refuse storage and material recovery chambers to be fully enclosed save for door etc.

Save for the access door provided in accordance with regulation 10, the opening for any refuse chute and any opening for a hopper, there shall be no openings in any refuse storage and material recovery chamber.

(39 of 2000 s. 7)

7. Refuse storage and material recovery chambers to have one external wall

Not less than one of the walls of every refuse storage and material recovery chamber shall be an external wall.

(39 of 2000 s. 7)

8. Minimum dimensions of refuse storage and material recovery chambers

- (1) No refuse storage and material recovery chamber shall have any dimension less than 1.5 m.
- (2) The height, measured to the ceiling, of every refuse storage and material recovery chamber shall, throughout the chamber, be not less than 2 m.

(39 of 2000 s. 7)

9. Construction of refuse storage and material recovery chambers

- (1) Every refuse storage and material recovery chamber shall be constructed of brickwork, concrete or other approved material.
- (2) The whole of the internal faces of the walls of every refuse storage and material recovery chamber shall be lined with glazed bricks, glazed tiles or other approved material.
- (3) The ceiling of every refuse storage and material recovery chamber shall be rendered in cement and finished with a smooth surface.
- (4) The floor of every refuse storage and material recovery chamber shall be—
 - (a) constructed of concrete not less than 100 mm thick;
(L.N. 439 of 1990)
 - (b) laid to fall towards the gully provided in accordance with regulation 11; and
 - (c) finished with quarry tiles or other approved hard impervious material.
- (5) In every refuse storage and material recovery chamber the junction of the floor with the walls shall be coved.

(39 of 2000 s. 7)

10. Access door to refuse storage and material recovery chambers

and construction thereof

- (1) Every refuse storage and material recovery chamber shall be provided with a close-fitting steel door.
- (2) Every such door shall—
 - (a) be situated in an external wall of the refuse storage and material recovery chamber;
 - (b) have a height of not less than 1.8 m;
 - (c) have a width of not less than 1.25 m; and
 - (d) be provided with a lock or other means of preventing unauthorized persons obtaining access to the refuse storage and material recovery chamber.
- (3) The internal surface of the door shall be without projections.

(39 of 2000 s. 7)

11. Drainage of refuse storage and material recovery chambers

- (1) Every refuse storage and material recovery chamber shall be provided, in the floor thereof, with an outlet drain.
- (2) Every such drain shall be—
 - (a) provided with a grating; and
 - (b) connected, by means of a pipe having an internal diameter of not less than 100 mm, to a back inlet trapped gully.
- (3) Every such gully shall be—
 - (a) situated in a position immediately outside the refuse storage and material recovery chamber;
 - (b) fitted with an airtight cover to provide access to the gully for inspection and cleaning; and

- (c) connected to a drain provided for the carriage of foul water.

(39 of 2000 s. 7)

12. Refuse storage and material recovery chambers to have water supply point

- (1) For the purpose of cleaning the same, there shall be provided, in every refuse storage and material recovery chamber, a water supply point.
- (2) Such water supply point shall be connected to the supply of water provided for flushing the soil fitments in the building for which the refuse storage and material recovery chamber is provided.

(39 of 2000 s. 7)

12A. Mechanical ventilation and air purifying facilities for refuse storage and material recovery chambers

Every refuse storage and material recovery chamber shall be provided with—

- (a) a ventilation system by mechanical means which shall be capable of supplying fresh air to all parts of the chamber at a rate of not less than 3 changes of air per hour; and
- (b) air purifying facilities to the exhaust part of the ventilation system mentioned in subparagraph (a) to the satisfaction of the Building Authority.

(39 of 2000 s. 7)

12B. Refuse storage and material recovery rooms to be readily accessible

Every refuse storage and material recovery room shall be readily

accessible by any occupier of the building at all times.

(39 of 2000 s. 7)

12C. Refuse storage and material recovery rooms to be provided with adequate lighting

Every refuse storage and material recovery room shall have an illumination level of not less than 120 lux measured at the finished floor level.

(39 of 2000 s. 7)

13. Refuse chutes to comply with regulations 14 to 25

Where a refuse chute is provided in any building it shall be so designed as to—

- (a) be vertical save as provided in regulation 14;
- (b) terminate at its lower level in a refuse storage and material recovery chamber; and *(39 of 2000 s. 7)*
- (c) comply with the requirements of regulations 14 to 25.

14. Bends or offset in any refuse chute prohibited

- (1) No refuse chute shall have a bend or offset in it except at its foot or above the level of the highest hopper.
- (2) Where any refuse chute has an offset at the foot thereof, such offset shall—
 - (a) have a slope of not less than 60° to the horizontal; and
 - (b) be constructed of replaceable galvanized or stainless steel of not less than 3 mm thickness.

15. Minimum height of top of refuse chutes

The top of every refuse chute shall be not less than 300 mm above the top of the highest hopper.

16. Lining and internal size of refuse chutes

Every refuse chute shall—

- (a) be lined with glazed ware or other impervious tubes; and
- (b) have an internal diameter of not less than 450 mm.

17. Walls of refuse chutes

The walls of every refuse chute shall be constructed of solid brick or concrete, and shall be not less than 100 mm thick, exclusive of any lining.

18. Refuse chute to be provided with shutter

Every refuse chute shall be provided at its lower end with a galvanized or stainless steel shutter so constructed as to enable the chute to be closed when necessary.

19. Ventilating pipe for refuse chute

- (1) Every refuse chute shall be provided at the top thereof with a ventilating pipe.
- (2) Every such ventilating pipe shall—
 - (a) have an internal area of not less than 0.05 m²; and
 - (b) be carried up from the top of the refuse chute to a height, above the roof of the building, of not less than 1 m.
- (3)
 - (a) The end of every such ventilating pipe shall be provided with a grating or grille having apertures of an aggregate area not less than the sectional area of the pipe.
 - (b) The least dimension of every such aperture shall be not more than 10 mm.

20. Inspection and cleansing of refuse chute

- (1) Every refuse chute shall be provided, above the level of the highest hopper, with an access opening, not less than 225 mm in diameter, for the inspection and cleansing of the chute.
- (2) Every such access opening shall be provided with a close fitting metal cover.

21. Construction of internal surface of refuse chute

- (1) The internal surface of every refuse chute shall be smooth and impervious and shall be formed of or lined with glazed ware or other approved material.
- (2) Where such surfaces are formed of or lined with pipes, the pipes shall be—
 - (a) jointed in—
 - (i) cement mortar in the proportion of one volume of cement to one volume of sand; or
 - (ii) other approved material; and
 - (b) securely and solidly bedded into the walls of the chute.

22. Situation of hopper

Every hopper shall be situated in a place permanently ventilated to the open air.

23. Construction of hopper

- (1) The mouth of every hopper shall have a clear opening having dimensions not less than 250 x 150 mm and not more than 350 x 250 mm.
- (2) Every hopper shall be so constructed—

- (a) that it will remain only in a completely closed or completely open position and will not open of its own accord; and
 - (b) as to prevent the escape of dust or fumes both when it is closed and when it is open.
- (3) Every hopper and frame shall be so constructed as to prevent refuse becoming lodged therein.
- (4) Every hopper and frame shall be constructed of galvanized or stainless mild steel plate, of not less than 3 mm thickness, or other approved material.
- (5) The inner plate of every hopper shall project downward at an angle of not less than 45° to the horizontal when the hopper is closed.

24. Hopper recess

The recess into which any hopper is fitted shall be of a size adequate to house the frame and the moving parts of the hopper so that no part of the frame or hopper projects into the refuse chute.

25. Junction of hopper with refuse chute

The junction of every hopper with the refuse chute shall be so made as to provide a continuous smooth and impervious surface.

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Schedule

[reg. 3]

Description of building	Total floor area as shown on plan	Description of material recovery chamber/refuse storage and material recovery chamber	Minimum floor space of material recovery chamber/refuse storage and material recovery chamber
Domestic Building	(a) Usable floor space 1 320 m ² or more but less than 13 200 m ²	Refuse storage and material recovery chamber	Total usable floor space in m ² divided by 347
	(b) Usable floor space 13 200 m ² or more	Refuse storage and material recovery chamber with vehicular access	Total usable floor space in m ² divided by 347

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Description of building	Total floor area as shown on plan	Description of material recovery chamber/refuse storage and material recovery chamber	Minimum floor space of material recovery chamber/refuse storage and material recovery chamber
Non-domestic Building (except Industrial Building)	(a) Usable floor space 3 960 m ² or more but less than 39 600 m ²	Refuse storage and material recovery chamber	Total usable floor space in m ² divided by 925
	(b) Usable floor space 39 600 m ² or more	Refuse storage and material recovery chamber with vehicular access	Total usable floor space in m ² divided by 925
Industrial Building	(a) Usable floor space 3 960 m ² or more but less than 39 600 m ²	Material recovery chamber	Total usable floor space in m ² divided by 2 320 but not less than 2.25 m ²
	(b) Usable floor space 39 600 m ² or more	Material recovery chamber with vehicular access	Total usable floor space in m ² divided by 2 320

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Description of building	Total floor area as shown on plan	Description of material recovery chamber/refuse storage and material recovery chamber	Minimum floor space of material recovery chamber/refuse storage and material recovery chamber
Composite Building	(a) Aggregate usable floor space 1 320 m ² or more but less than 13 200 m ²	Refuse storage and material recovery chamber	Aggregate of— (a) the total usable floor space of the domestic building component in m ² divided by 347; and (b) the total usable floor space of the non-domestic building component in m ² divided by 925
	(b) Aggregate usable floor space 13 200 m ² or more	Refuse storage and material recovery chamber with vehicular access	Aggregate of— (a) the total usable floor space of the domestic building component in m ² divided by 347; and

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Description of building	Total floor area as shown on plan	Description of material recovery chamber/refuse storage and material recovery chamber	Minimum floor space of material recovery chamber/refuse storage and material recovery chamber
			(b) the total usable floor space of the non-domestic building component in m ² divided by 925

(Schedule replaced 39 of 2000 s. 7)